

Amendment No. 2 to SB1316

Briggs
Signature of Sponsor

AMEND Senate Bill No. 1316*

House Bill No. 1330

by deleting § 20-9-605(1), (3), (6), (8), and (9) in SECTION 12 and substituting instead:

- (1) Act on matters concerning competency for licensure only and the process of granting, suspending, reinstating, and revoking a license;
- (3) Establish a procedure for the investigation of complaints against licensed court reporters or any person or entity practicing court reporting without a license;
- (6) Adopt continuing education requirements for court reporters;
- (8) Maintain records of proceedings and a registry of all persons licensed by the commissioner, which must be a public record and open to inspection;
- (9) In the event funds are available from fees after expenses, study and, if feasible, establish the transcript reimbursement fund to assist indigent parties in obtaining transcripts; and
- (10) Promulgate rules pursuant to § 20-9-607. All rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

AND FURTHER AMEND by deleting SECTION 17 and substituting instead:

SECTION 17. Tennessee Code Annotated, Section 20-9-609(a), is amended by deleting the subsection and substituting:

- (a) To be licensed as a court reporter, an applicant shall submit proof of passage of the National Court Reporters Association registered professional reporter examination, the National Verbatim Reporters Association certified verbatim reporter examination, or the American Association of Electronic Reporters and Transcribers

certified electronic reporter examination and certified electronic transcriber examination. Applications for licensure shall be signed and sworn by the applicants and submitted on forms furnished by the commissioner. All applicants who are found qualified to engage in the practice of court reporting pursuant to this part must be issued a license as a licensed court reporter and an identifying number. The license is valid for two (2) years from the date of issuance. Notwithstanding any other law to the contrary, a licensed court reporter is not required to be a notary public to administer oaths to witnesses in the performance of their professional duties as a court reporter.